BOARD OF ZONING APPEALS
JUNE 30, 2025
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Joan Spier.
Absent: Molly Hall.
Staff: Chris Swalhah, Kara Browder, Eddie Bernard, Peter Stone, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Ms. Spier seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments, Mr. Wood continued with the agenda. All correspondence received has been linked to the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood explained the procedures for the public and administered the oath to those speaking.

G. Business

1. Case A-03-25, **1277 Chuck Dawley Boulevard, TMS# 560-01-00-002,** Appeal of Zoning official's determination of 156.1542 denying the construction of an extension to an existing equipment shed and

relocation of the existing fence line. Zoning Official's Determination Related Correspondence

- Mr. Swalhah recused himself due to a conflict of interest.

- Ms. Browder reviewed staff comments with the Board.

- Mr. Zach Swalhah, representative for Dominion Energy, reviewed the request with the Board.

- Ms. Melonie Hammond-Trace, 1265 Calais Drive, stated that she supports the request as it is important for their response to the community.

- Mr. Anthony Young, 1216 Decoy Court, expressed concern that the buffer would be reduced. He stated that he has contacted Dominion to ask for this to be corrected but has not heard back from them. He suggested that the equipment could be located under the existing shed. He stated that there has been an increase in noise from workers that has been disturbing the residents.

- There being no further comments, Mr. Wood asked for rebuttal.

- Mr. Z. Swalhah stated that they have a standing procedure to keep the radios off after work hours. He stated that extending the shed would allow the vehicles to be stored and not cause as much noise.

- Mr. Wood closed public comment.

- Mr. Wood re-opened public comment for a question for the applicant. Mr. Wood closed public comment.

- *Mr. Branch moved for approval of the appeal and find in favor of the applicant. Ms. Stevens seconded the motion. Motion passed on a 5 to 1 vote with Mr. Barrow, Mr. Branch, Ms. Spier, Ms. Stevens, and Mr. Wood in favor; Mr. Butner opposed.*

2. **Case V-16-25 , 524 Whilden Road, TMS# 532-01-00-115,** Request for relief from §156.702 to allow the removal of a 30.5'' Laurel Oak.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Allen Biggers, 711 Royall Ave, reviewed the request with the Board.

- Mr. Chris Clark, 415 Morrison, suggested that the Laurel Oak has been there for many years. He expressed concern that removal of the tree would exacerbate the runoff to adjacent properties.

- Ms. Cynthia Kahn, 516 Whilden St, stated that her family has lived for generations in the Charleston area. She suggested that removal of the tree would be detrimental to the historic character of the neighborhood and would further eliminate the ecosystem of the neighborhood. She suggested that removal would further exacerbate the runoff in the area. She suggested that if removed and construction added to the property, it would negatively affect the property values of the surrounding neighborhood and insurance rates would increase due to increased flooding. She asked that the request be denied as it is not the correct thing to do.

- Ms. Maria Austin, 414 Morrison, suggested that the property was purchased after the new zoning ordinance went into effect and has been on the property for many years and is a size that is deemed historic. She suggested that the tree can absorb a significant amount of water and runoff and is a valuable asset in keeping the flooding from being more significant. She suggested that the tree would be able to reduce storm runoff by approximately 1,000 gallons a year. She suggested that the tree provides a vital function for the neighborhood.

- Ms. Michele Stress, 545 Veranda View, suggested that this request is a detriment to the neighborhood and is a valuable resource for the neighborhood in providing absorption of runoff. She suggested that the several properties were purchased from the same owner and could be aggregated.

- Mr. Biggers rebutted that a "rigorous" drainage review is completed by staff for all new construction. He stated that the lots have not been recently subdivided.

- Mr. Swalhah rebutted and clarified the establishment of the lot and the current zoning with the Board. He stated that the Board does not have purview over drainage or stormwater issues and these issues cannot be used for justification of a variance.

- Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that there are extraordinary conditions because of the size of the lot; conditions do apply to other properties as there are other lots with historic trees; denial would not prohibit the use of the property; and there would be a detriment to the public good based on the testimony presented and the character of neighborhood would be harmed. Ms. Spier seconded the motion. Motion passed on a 4 to 2 vote with Mr. Butner, Mr. Barrow, Ms. Spier, and Mr. Wood in favor; Mr. Branch and Ms. Stevens opposed.*

3. **Case V-17-25**, **505 King Street, TMS# 532-05-00-103,** Request for relief from §156.039-1 to allow an encroachment into the required 25' rear setback for the construction of an addition to the principal dwelling.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Daniel Lee, homeowner, and Mike McMahon, builder, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Wood moved for denial based on the findings that part 3 of the required criteria to grant a variance has not been met. Mr. Branch seconded the motion. All in favor.*

4. **Case S-02-25**, **790 Creekside Drive, TMS# 535-14-00-066,** Request for special exception in accordance with §156.1206 to replace/relocate outdoor lighting at a community recreation facility on an R-1 zoned parcel.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Matthew Cline, Cline Engineering, reviewed the request with the Board. He asked that the petition and letters of support be submitted into the record.

- *Mr. Wood moved for approval of submittal of a petition and letters of support into the record. Mr. Branch seconded the motion. All in favor.*

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that all criteria required to approve a variance has been met. Mr. Butner seconded the motion. All in favor.*

5. **Case S-03-25**, **1513 Mathis Ferry, TMS# 559-00-00-073,** Request for special exception in accordance with §156.1206 to allow the construction of an indoor tennis court at an existing tennis club on a R-1 zoned parcel

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Lee Gastley, Seamon, Whiteside, and Associates, and Mr. James Wilson, attorney, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that the request meets the criteria to grant a special exception. Ms. Stevens seconded the motion. All in favor.*

6. **Case V-18-25**, **1013 Plantation Court, TMS# 562-02-00-172,** Request for relief from §156.424-1 to allow a 4’ 6’’ encroachment into the side accessory setback and a 4’ encroachment into the rear accessory setback.

The ordinance requires a 6’ setback from the rear and side property lines for accessory buildings. Related Correspondence

- Mr. Swalhah reviewed staff comments with the Board.
- Ms. Lauren Unger, owner, reviewed the request with the Board.
- There being no comments, Mr. Wood moved to Board questions.
- Mr. Wood closed public comment.
- *Mr. Butner moved for approval based on the findings that it has met the criteria and that denial would unreasonably restrict and prohibit use of the property because of the family and work dynamic. Mr. Branch seconded the motion. Motion failed on a 3 to 3 vote with Mr. Butner, Mr. Barrow, and Mr. Branch in favor; Ms. Spier, Ms. Stevens, and Mr. Wood opposed.*

Mr. Wood stated that the item would be on next month’s agenda for rehearing.

There being no further business, the meeting adjourned at 8:27 pm.

Submitted by,
L. Lynes
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